

**25STCV15793 25STCV15793**

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-07-17

Motion: RONALD D. MINER's, as administrator of the Estate of Josephine Duggan, DEMURRER TO FIRST AMENDED COMPLAINT

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Case Number: 25STCV15793 Hearing Date: July 17, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DAVID

CARPENTER, an individual,

Plaintiff,

vs.

RONALD D. MINER, as administrator of the Estate of  
Josephine Duggan; and ALL PERSONS UNKNOWN, CLAIMING ANY LEGAL OR EQUITABLE  
RIGHT, TITLE, ESTATE, LIEN OR INTEREST IN THE PROPERTY DESCRIBED IN THE  
COMPLAINT ADVERSE TO PLAINTIFF'S TITLE, OR ANY CLOUD ON PLAINTIFF'S TITLE  
THERE TO, named herein as DOES 1 through 100, inclusive,

Defendants.

AND RELATED CROSS-ACTION.

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CASE

NO.: 25STCV15793

[TENTATIVE] ORDER RE: RONALD

D. MINER's, as administrator of the Estate of Josephine Duggan, DEMURRER TO FIRST  
AMENDED COMPLAINT

Dept. 733

8:30 a.m.

July 17, 2026

I.

INTRODUCTION

On May 30, 2025,

Plaintiff David Carpenter ("Carpenter") filed a complaint against Defendant  
Ronald D. Miner, as administrator of Estate of Josephine Duggan ("Miner").

On August 8, 2025,

Miner filed a cross-complaint for Ejectment.

On January 13, 2026, Carpenter filed a first amended complaint ("FAC"), alleging causes of action for (1) Restitution based on Defendant's Unjust Enrichment, (2) Quiet Title, (3) Quiet Title, (4) Easement, and (5) Declaratory Relief.

The FAC alleges the following. Josephine Duggan ("Ms. Duggan") and Kenneth P. Duggan ("Mr. Duggan") held title to the Subject Property as joint tenants beginning in or about 1971, Mr. Duggan then passed away in or about November 1986, and Ms. Duggan passed away sometime thereafter, well over 25 years ago. (Compl., ¶ 10.) Carpenter has occupied the Subject Property continuously since in or about November 2005. (Id. ¶ 11.) Since 2005, Plaintiff has paid all expenses and costs related to the repair, maintenance and upkeep of the Subject Property, and Plaintiff alleges that he has expended approximately \$160,000 in cleanup, repairs, maintenance and upkeep of the Subject Property. (Id. ¶ 13.) Carpenter has also paid all real property taxes related to the Subject Property for 17 years and only stopped paying such taxes when Miner started paying them. (Id. ¶ 14.) Carpenter is informed and believes that the current value of the Subject Property is estimated to be approximately \$1.2 million. (Id. ¶ 16.)

On March 10, 2026, Miner filed the instant demurrer.

On July 7, 2026, Carpenter filed an opposition.

No reply was filed.

II.

## LEGAL STANDARD

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading "by raising questions of law." (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose

of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc., § 452.) The court “‘treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law . . . .” (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.)

When a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.)

III.

#### JUDICIAL NOTICE

Miner requests for the Court to take judicial notice of the following pursuant to Evidence Code sections 452(c), (d) and (h), and 453:

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Amended Judgment In Favor [Sic] Of Defendant Ronald D. Miner’s Motion For Summary Judgment Against Plaintiff David Carpenter, Case Number 22stcv10773, Filed November 14, 2023.

The Court grants Miner’s request.

IV.

#### DISCUSSION

##### 1. Brief Statement of Facts

##### a. Quiet Title Action

On March 29, 2022, Carpenter filed a complaint in Los Angeles Superior Court against

Miner, alleging causes of for Quiet Title and Adverse Possession (Case No. 22STCV10773) (“Quiet Title Action”). In the

Quiet Title Action, then court on September 14, 2023 granted Miner's motion for summary judgment, holding that "Plaintiff cannot quiet title to the real property located at 215 S. Burlington Ave., Los Angeles, CA, (the Property) based on Plaintiff's alleged adverse possession of the Property from 2005 to the present, because Plaintiff cannot establish the requisite tax payments required to establish adverse possession." On November 14, 2023, the Court entered an amended judgment in favor of Miner, holding that Miner shall recover his costs from Carpenter. (See Miner RJN Ex. 1.)

b.

Forcible Detainer Action

On July 10, 2024, Miner filed a forcible detainer action (Case No. 24STUD08555)

("Forcible Detainer Action") based on the Court's judgment in the Quiet Title Action. On May 22, 2025, the court entered judgment in favor of Carpenter after a two-day bench trial and after Carpenter moved for judgment after the close of Miner's case, finding that the specific elements of forcible entry under Code of Civil Procedure section 1159(a) had not been proven. (See FAC, Ex. 1.) The court stated that the "the evidence offered at trial indicates that [Carpenter] did not enter via any breaking." (Ibid.)

2. Demurrer

Miner

demurs to the second, third, fourth, and fifth causes of action in the FAC.

a. Second and

Third Causes of Action: Quiet Title

Miner demurs to

the second and third causes of action for Quiet Title, which allege a

Quiet Title claim premised on Carpenter's allegations that he has a "life estate in the Subject Property by way of prescription" or that he has a "life estate in the Subject Property by way of equity and necessity."

An action for

quiet title seeks “to establish title against adverse claims to real or personal property or any interest therein.” (Code Civ. Proc., § 760.020, subd. (a).) In an action for quiet title, Plaintiff must plead (1) “[a] description of the property that is the subject of the action,” specifically the location of tangible personal property and the legal description and street address or common designation of real property, (2) “[t]he title of the plaintiff as to which a determination under this chapter is sought and the basis of the title,” (3) “[t]he adverse claims to the title of the plaintiff against which a determination is sought,” (4) “[t]he date as of which the determination is sought,” and (5) “[a] prayer for the determination of the title of the plaintiff against the adverse claims.” (Code Civ. Proc., § 761.020.)

The Court

does not find that Carpenter sufficiently stated his claim for quiet title premised on a life estate. Carpenter sufficiently alleged the description of the Property, 215 S. Burlington Avenue, Los Angeles, California 90057, APN:5154- 021-008, [and having the legal description of] The Southwesterly 45 feet of Lot 8 of Tract Number 906, in the City of Los Angeles, County of Los Angeles, State of California, as per map recorded in Book 16, Page 164 of Maps, in the office of the County Recorder of said County. (FAC, ¶ 1.) Carpenter also alleges that he seeks to quiet title against Miner and his claims to the Subject Property, to quiet title based upon Carpenter's life estate. (Id. ¶¶ 32-33.) He seeks to quiet title as of May 22, 2025. (Id. ¶ 34.)

While

Carpenter alleges the title as to which a determination is sought, a life estate, Carpenter again provides no legally viable basis for that title. Carpenter alleges that he “has a life estate in the Subject Property by way of prescription which constitutes an interest therein.” (FAC ¶ 26.) He also alleges that he “has a life estate in the Subject Property by way of equity and necessity.” (Id. ¶ 43.)

But

“prescription” or an “implied easement” are simply not legally cognizable methods to obtain a life estate interest in property. “There is a difference between a prescriptive use of land culminating in an easement (i.e., an incorporeal interest) and adverse possession which creates a change in title or ownership (i.e., a corporeal interest); the former deals with the use of land, the other with possession; although the elements of each are similar, the requirements of proof are

materially different.” (Raab v. Casper (1975) 51 Cal.App.3d 866, 876.) “Unsurprisingly, claimants have often tried to obtain the fruits of adverse possession under the guise of a prescriptive easement to avoid having to satisfy the tax element. (Kapner v. Meadowlark Ranch Assn (2004) 116 Cal.App.4th 1182, 1187.) That is, they seek judgments “employing the nomenclature of easement but ... creat[ing] the practical equivalent of an estate.” (Raab, supra, 51 Cal.App.3d at p. 877.) Such judgments “pervert[ ] the classical distinction in real property law between ownership and use.” (Silacci v. Abramson (1996) 45 Cal.App.4th 558, 564 [An easement acquired by prescription is one acquired by adverse use for a certain period. An easement, however, is not an ownership interest[.]”] (emphasis added).)

Carpenter provides no legal basis for his position that a life estate, which is an ownership interest in property, can be created by way of prescription or implied easement, which are means to acquire a “nonpossessory right to enter and use land in the possession of another and obligates the possessor not to interfere with the uses authorized by the easement.” (Marvin M. Brandt Revocable Tr. v. United States (2014) 572 U.S. 93, 105; Durante v. Cnty. of Santa Clara (2018) 29 Cal.App.5th 839, 843 [“a life estate in real property is considered an interest in fee simple.”].)

The demurrer to the second and third causes of action is sustained.

b.

Fourth Cause of Action: Equitable Easement

Miner demurs to the fourth cause of action for Equitable Easement, a cause of action that was not alleged in Carpenter’s original complaint.

“It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all.” (Cmty. Water Coal. v. Santa Cruz Cnty. Loc. Agency Formation Com. (2011) 200 Cal.App.4th

1317, 1329.) “The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend.” (Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018, 1023.)

Carpenter neither pleaded a cause of action for Equitable Easement nor advanced the legal theory for Equitable Easement in the original complaint. Carpenter impermissibly added this new cause of action, which was not within the scope of the Court’s granting leave to amend after sustaining Miner’s previous demurrer. Thus, on the Court’s own motion, the Court strikes the fourth cause of action for Equitable Easement because it was “not drawn or filed in conformity with ... an order of the court.” (Code Civ. Proc., § 436, subd. (b).)

c.

Fifth Cause of Action: Declaratory Relief

“To qualify for declaratory relief, a party would have to demonstrate its action presented two essential elements: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party’s rights or obligations.” (Jolley v. Chase Home Finance, LLC (2013) 213 Cal.App.4th 872, 909, quotation marks and brackets omitted.)

Given

that the Carpenter’s cause of action for declaratory relief is similarly premised on the “respective rights and duties to the Subject Property in that [Carpenter] claims life estate to the Subject Property, and that [Miner] contend that such a life estate does not exist in Plaintiff’s favor,” the Court sustains the demurrer as to the declaratory relief cause of action. (FAC ¶ 67.)

The

demurrer the fifth cause of action is sustained.

d.

Leave to Amend

The burden is on a



plaintiff to demonstrate how she can amend the complaint and how that amendment will change the legal effect of the pleading. (Vanacore & Assoc, Inc. v. Rosenfeld (2016) 246 Cal. App. 4th 438, 454.) The assertion of an abstract right to amend does not satisfy this burden.” (Rakestraw v. California Physicians’ Service (2000) 81 Cal. App. 4th 39, 43.) The plaintiff must clearly and specifically state “the legal basis for amendment, i.e., the elements of the cause of action,” as well as the “factual allegations that sufficiently state all required elements of that cause of action.” (Id. at p. 44.) Here, Carpenter neither requests for leave to amend nor has made a showing that there is reasonable possibility that amendment will cure the FAC’s defects.

The Court will nonetheless grant Carpenter leave to amend. Carpenter is cautioned, however, that if he chooses to amend and leave to amend is requested in the future, he will be required to meet the legal burden. If Carpenter does not, the Court advises him that this may be his last opportunity to amend.

#### V. CONCLUSION

Based on the foregoing,

Miner’s demurrer is SUSTAINED as to the second, third and fifth causes of action with

thirty (30) days leave to amend.

On the Court’s own motion, the Court STRIKES the fourth cause of action without leave

to amend.

Dated this 17th  
day of July 2026

Hon. Gary  
D. Roberts

Judge  
of the Superior Court